IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No3

CP(CAA)/79(AHM)2022
in
CA(CAA)/48(AHM)2022

Proceedings under Section 230-232 Co.Act,2013

IN THE MATTER OF:

Gujarat Sidhee Cement Limited ((Transferor Company)) **.....Applicant**

Saurashtra Cement Limited ((Transferee Company) **.....Respondent**

Order delivered on ..14/12/2022

Coram:

Dr.Deepti Mukesh, Hon'ble Member(J)
Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant : Mr. Saurabh Soparkar, Sr. Adv. & Ms. Dharmishta Raval, Adv.
: Mr. Nikunt Raval, Adv.

For the Respondent :

ORDER

Learned Sr. Counsel Mr. Soparkar states that in pursuance of the direction passed in the first motion application order dated 12.10.2022, the chairperson's reports are filed on 28.11.2022. The present petition is filed on 06.12.2022. He further states that, delay, if any, may be condoned. Minor delay in filing second motion petition is condoned.

Second motion petition filed under Section 230-232 of the Companies Act.

The Petitioner has served Notice(s) to Statutory Authorities and also filed affidavit evidencing service to concerned Authorities.

The petition is admitted.

The Petitioner shall advertise Notice of hearing of this petition in "Business Standard" Mumbai and Ahmedabad Editions in English, and Gujarati translation thereof in "Jai Hind", Rajkot Edition in vernacular language not less than ten days before fixed date of hearing, calling for objections, if any, on or before the date of hearing.

The Petitioner shall issue notice(s) to following, informing the date of hearing:

1. **Regional Director and the Registrar of Companies** both situated at *RoC* Bhavan, Opp. Rupal Park Society, Behind Ankur Bus Stop, Naranapura, Ahmedabad (380013)**.**
2. **The Official Liquidator** situated at 3rd Floor, Corporate Bhawan, B/H Zydus Hospital, Thaltej, Ahmedabad-380059 Gujarat.
3. **The Income Tax Department** at respective ward officers with details of PAN of all Petitioners Companies and also Office of Principal Chief Commissioner Income Tax, at their present address.

List for hearing on 30.01.2023.

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AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

DR. DEEPTI MUKESH
MEMBER (JUDICIAL)

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